

Laxmawwa W/O Dharmappa Pujar vs Gangawwa W/O Dharmappa Pujar(Lamani) on 2 December, 2024

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NC: 2024:KHC-D:17580

RSA No. 5489 of 2012

IN THE HIGH COURT OF KARNATAKA,
DHARWAD BENCH

DATED THIS THE 2ND DAY OF DECEMBER, 2024

BEFORE

THE HON'BLE MRS JUSTICE K.S.HEMALEKHA

REGULAR SECOND APPEAL NO. 5489 OF 2012 (PAR)

BETWEEN:

1. SMT. LAXMAWWA
W/O. DHARMAPPA PUJAR,
AGE: 60 YEARS, R/O. JINNAPUR,
TQ. KOPPAL-583230.
2. YAMANAPPA
S/O. DHARMAPPA PUJAR,
AGE: 34 YEARS, OCC. AGRICULTURE,
R/O. JINNAPUR, TQ. KOPPAL-583230.

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NINGAPPA PATTIHAL
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3. SMT. YAMANAWWA

W/O. SHEKAPPA LAMANI,
AGE: 43 YEARS, OCC. HOUSEHOLD,
R/O. JINNAPUR, TQ. KOPPAL-583230.
4. SMT. SOMAWWA
W/O. AMARESH LAMANI,
AGE: 41 YEARS, OCC: HOUSEHOLD,
R/O. DEVI CAMP TANDA, TQ. GANGAVATHI,
DIST. KOPPAL-583230.
5. SMT. MANNAWWA
W/O. HANMAPPA LAMANI,

AGE: 39 YEARS, R/O. ADAVIBHAVI,
TQ. GANGAVATHI, DIST. KOPPAL-583230.

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6. SMT. RUKMAWWA
W/O. ESHAPPA LAMANI,
AGE: 34 YEARS, R/O. ARAINKERI,
TQ. KOPPAL AND DIST. KOPPAL-583230.

... APPELLANTS

(BY SRI. M.AMAREGOUDA, ADVOCATE)

AND:

1. SMT. GANGAWWA
W/O. DHARMAPPA PUJAR (LAMANI),
AGE: 69 YEARS, R/O. JINNAPUR,
TQ. AND DIST. KOPPAL-583230.
2. SMT. YAMANAWWA
W/O. YAMANAPPA LAMANI,
AGE: 43 YEARS, R/O. KALAKERI,
NOW AT JINNAPUR,
TQ AND DIST. KOPPAL-583230.

... RESPONDENTS

(BY SRI. A B PATIL, ADVOCATE)

THIS RSA IS FILED U/S.100 OF CPC., 1908, AGAINST
THE JUDGMENT AND DECREE DATED 23.11.2011 PASSED
IN R.A.NO.50/2011 ON THE FILE OF THE SENIOR CIVIL
JUDGE AT KOPPAL, ALLOWING THE APPEAL FILED
AGAINST THE JUDGMENT DATED 23.08.2011 AND THE
DECREE PASSED IN OS.NO.94/2009 ON THE FILE OF THE
CIVIL JUDGE AND JMFC, AT KOPPAL, DECREEDING THE
SUIT FILED FOR PARTITION.

THIS APPEAL, COMING ON FOR ADMISSION, THIS
DAY, JUDGMENT WAS DELIVERED THEREIN AS UNDER:

CORAM: THE HON'BLE MRS JUSTICE K.S.HEMALEKHA

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ORAL JUDGMENT

1. With the consent of both the learned counsel appearing for the parties, the appeal is taken for final disposal.

2. This Court while admitting the appeal has framed the following substantial questions of law:

"Whether the judgment and decree of the Courts below granting shares to the plaintiffs and defendants needs to be modified in light of decision of the Apex Court in the case of Revanasiddappa & another vs. Mallikarjun & Others¹?

3. The family genealogical tree is culled out as under:

DHARMAPPA (PROPOSITUS) GANGAWWA LAXMAWWA (1ST WIFE - P1) (2ND WIFE - D1) YAMANAWWA YAMANAPPA YAMANAWWA SOMAWWA MANNAWWA RUKAMAWWA (P2) (D2) (D3) (D4) (D5) (D6) 2011 AIR SCW 2447 NC: 2024:KHC-D:17580

4. Heard the learned counsel appearing for the appellants and the learned counsel appearing for the respondents. Perused the materials available on record.

5. The undisputed fact is that Dharmappa had two wives namely Gangawwa (P1) and Laxmawwa (D1). During the existence of marriage with Gangawwa, Dharmappa married Laxmawwa and from Laxmawwa, he had five children namely defendant Nos.2 to 6. The suit schedule property is the ancestral property, is also not in dispute.

6. The trial Court decreed the suit of the plaintiffs declaring that plaintiff No.1 is entitled for 1/14th share and plaintiff No.2 is entitled for 8/14th share in item Nos.1 and 2 of the suit schedule property, which came to be confirmed by the First Appellate Court.

7. The Courts below while quantifying the share held that, the deceased-Dharmappa was entitled for half share and half share would be allotted to the share of NC: 2024:KHC-D:17580 plaintiff No.2-daughter; plaintiff No1-wife and defendant Nos.2 to 6 being the children of the deceased Dharmappa from Laxmawwa are entitled for their respective shares in the suit properties.

8. The qualification of shares arrived is without quantifying any share to plaintiff No.1-wife at the first instance. The Apex Court in the case of REVANASIDDAPPA AND ANOTHER VS. MALLIKARJUN AND OTHERS² (REVANASIDDAPPA) has given deliberate consideration to Section 16 of the Hindu Marriage Act, 1955 and has arrived at the following conclusion at paragraph No.74 which reads as under:

"74. We now formulate our conclusions in the following terms:

- (i) In terms of sub-section (1) of Section 16, a child of a marriage which is null and void under Section 11 is statutorily conferred with legitimacy irrespective of whether
- (i) such a child is born before or after the commencement of Amending Act, 1976; (ii)

a decree of nullity is granted in 2023 SCC OnLine SC 1087 NC: 2024:KHC-D:17580 respect of that marriage under the Act and the marriage is held to be void otherwise than on a petition under the enactment;

(ii) In terms of sub-section (2) of Section 16 where a voidable marriage has been annulled by a decree of nullity under Section 12, a child begotten or conceived' before the decree has been made, is deemed to be their legitimate child notwithstanding the decree, if the child would have been legitimate to the parties to the marriage if a decree of dissolution had been passed instead of a decree of nullity;

(iii) While conferring legitimacy in terms of sub-section (1) on a child born from a void marriage and under sub-section (2) to a child born from a voidable marriage which has been annulled, the legislature has stipulated in subsection (3) of Section 16 that such a child will have rights to or in the property of the parents and not in the property of any other person;

(iv) While construing the provisions of Section 3(1)(1) of the HSA 1956 including the proviso, the legitimacy which is conferred by Section 16 of the HMA 1955 on a child born from a void or, as the case may be, voidable marriage has to be read into the provisions of the HSA 1956. In other words, a child who is legitimate under sub-section (1) or sub-

NC: 2024:KHC-D:17580 section (2) of Section 16 of the HMA I would, for the purposes of Section 3(1)(j) of the HSA 1956, fall within the ambit of the explanation 'related by legitimate kinship' and cannot be regarded as an 'illegitimate child' for the purposes of the proviso;

(v) Section 6 of the HSA 1956 continues to recognize the institution of a joint Hindu family governed by the Mitakshara law and the concepts of a coparcener, the acquisition of an interest as a coparcener by birth and rights in coparcenary property. By the substitution of Section 6, equal rights have been granted to daughters, in the same manner as sons as indicated by sub- section (1) of Section 6;

(vi) Section 6 of the HSA 1956 provides for the devolution of interest in coparcenary property. Prior to the substitution of Section 6 with effect from 9 September 2005 by the Amending Act of 2005, Section 6 stipulated the devolution of interest in a Mitakshara coparcenary property of a male Hindu by survivorship on the surviving members of the coparcenary. The exception to devolution by survivorship was where the deceased had left surviving a female relative specified in Class I of the Schedule or a male relative in Class I claiming through a female relative, in which event the interest of the deceased in a Mitakshara NC: 2024:KHC-D:17580 coparcenary property would devolve by testamentary or intestate succession and not by survivorship. In terms of sub-section (3) of Section 6 as amended, on a Hindu dying after the commencement of the Amending Act of 2005 his interest in the property of a Joint Hindu family governed by the Mitakshara law will devolve by testamentary or intestate succession, as the case may be, under the enactment and not by survivorship. As a consequence of the substitution of Section 6, the rule of devolution by testamentary or intestate

succession of the interest of a deceased Hindu in the property of a Joint Hindu family governed by Mitakshara law has been made the norm;

(vii) Section 8 of the HSA 1956 provides general rules of succession for the devolution of the property of a male Hindu dying intestate. Section 10 provides for the distribution of the property among heirs of Class I of the Schedule. Section 15 stipulates the general rules of succession in the case of female Hindus dying intestate. Section 16 provides for the order of succession and the distribution among heirs of a female Hindu;

(viii) While providing for the devolution of the interest of a Hindu in the property of a Joint Hindu family governed by Mitakshara law, dying after the NC: 2024:KHC-D:17580 commencement of the Amending Act of 2005 by testamentary or intestate succession, Section 6 (3) lays down a legal fiction namely that the coparcenary property shall be deemed to have been divided as if a partition had taken place'. According to the Explanation, the interest of a Hindu Mitakshara coparcener is deemed to be the share in the property that would have been allotted to him if a partition of the property has taken place immediately before his death irrespective of whether or not he is entitled to claim partition;

(ix) For the purpose of ascertaining the interest of a deceased Hindu Mitakshara coparcener, the law mandates the assumption of a state of affairs immediately prior to the death of the coparcener namely, a partition of the coparcenary property between the deceased and other members of the coparcenary. Once the share of the deceased in property that would have been allotted to him if a partition had taken place immediately before his death is ascertained, his heirs including the children who have been conferred with legitimacy under Section 16 of the HMA 1955, will be entitled to their share in the property which would have been allotted to the deceased upon the notional partition, if it had taken place; and

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(x) The provisions of the HSA 1956 have to be harmonized with the mandate in Section 16(3) of the HMA 1955 which indicates that a child who is conferred with legitimacy under sub-sections (1) and (2) will not be entitled to rights in or to the property of any person other than the parents. The property of the parent, where the parent had an interest in the property of a Joint Hindu family governed under the Mitakshara law has to be ascertained in terms of the Explanation to sub-section (3), as interpreted above."

11. The reference to the three Judge Bench was whether a child born to parents whose marriage is null and void and annulled by a decree of nullity is declared to be a legitimate, if the child would have been legitimate, if the marriage had been valid and the "property" of the parent includes the share in the coparcenary property. The Apex Court in REVANNASIDDAPPA's case dealt with the complex issue of legitimacy and the property rights of the children born from void or voidable marriages. The Apex Court considered the provisions of Section 16 of the Hindu

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NC: 2024:KHC-D:17580 Marriage Act, 1955 and Section 6 of the Hindu Succession Act, 1956, as well as the amendments. The Apex Court emphasized that the child born to their parents of null and void marriage to be declared legitimate, as the child would have been legitimate if the marriage had been valid. The Apex Court considered the various decisions where differing interpretation of Section 16 Sub-Clause (3) of the Hindu Marriage Act, 1955, the Apex Court ultimately ruled that the children conferred with the legitimacy under Sections 16 (1) or 16 (2) of the Hindu Marriage Act, 1955 have similar right to legitimate children and can claim a share in the property of their parents and the "property" of the parents includes share in the coparcenary property, and the provision confers all the connotations of legitimacy on the children.

9. In light of the law declared by the Apex Court conferring with legitimacy under Section 16 of the Hindu Marriage Act, 1955, the children will be entitled to their share in the property which would have been allotted to

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NC: 2024:KHC-D:17580 the father upon the notional partition, if it had taken place and in light of the said proposition of law laid down by the Apex Court, in a notional partition between Dharmappa, Gangawwa and Yamanawwa, Dharmappa would be entitled for 1/3rd share; Gangawwa (wife-Plaintiff No.1) would be entitled for 1/3rd share; & Yamanavva - plaintiff No.2 would be entitled for 1/3rd share. In 1/3rd share of Dharmappa, Gangawwa and Yamanawwa and defendant Nos.2 to 6 would be entitled for 1/7th share each. Gangawwa would be entitled for 1/3rd + 1/21st share; Yamanawwa would be entitled for 1/3rd + 1/21st share; whereas, defendant Nos.2 to 6 would be entitled for 1/21st share, accordingly, substantial question of law is answered and the judgment and decree of the Courts below stands modified and this Court pass the following:

ORDER

(i) The Regular Second Appeal is hereby is allowed in part, judgment and decree of the courts below are modified holding that

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NC: 2024:KHC-D:17580 Plaintiff Nos.1 and 2 are entitled for 1/3rd + 1/21st share and defendant Nos.2 to 6 are entitled for 1/21st share.

Pending applications, if any, would not survive for consideration accordingly stand disposed of SD/-

_____ (JUSTICE K.S.HEMALEKHA) VNP / CT: PA